

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Magistrate Judge Kristen L. Mix**

Civil Action No. 17-cv-03070-KLM
Date: April 15, 2019

Court Reporter- Mary George
Courtroom Deputy, Laura Galera

DIEGO SEDILLO,

Meghan Martinez

Plaintiff,

v.

LONG VIEW SYSTEMS CO.,

Brooke Colaizzi
Alyssa Levy

Defendant.

COURTROOM MINUTES

JURY TRIAL - DAY 1

9:08 a.m. Court in session.

Court calls case. Appearances of counsel.

Jury panel not present.

Court addresses preliminary matters with counsel.

Sequestration order is invoked.

9:14 a.m. Court in recess.

9:30 a.m. Court in session.

Jury panel present.

Court's preliminary statements to the jury.

Jurors sworn for voir dire.

Twelve jurors called to the jury box.

9:30 a.m. Voir dire by the Court.

9:44 a.m. Voir dire by Ms. Martinez.

10:00 a.m. Voir dire by Ms. Colaizzi.

Jurors excused for cause: None.

Plaintiff's challenges: 100348655
100366169

Defendant's challenges: 100338883
100333286

Eight Jurors sworn to try the case: 100341917
100371166
100375918
100336692
100331598
100352034
100362546
100354465

Court's preliminary instructions to the jury.

Bailiff sworn.

Jury sworn.

10:25 a.m. Court in recess.

10:47 a.m. Court in session.

Jury present. Court instructs the jurors.

11:14 a.m. Opening statement by Ms. Martinez.

11:38 a.m. Opening statement by Ms. Colaizzi.

11:53 a.m. Jury excused.

11:56 a.m. Court in recess.

1:07 p.m. Court in session.

Jury not present.

Discussion regarding juror notebooks and stipulated exhibits.

Jury present.

Plaintiff's witness, Robert Crollett, called and sworn.

1:14 p.m. Direct examination of Mr. Crollett by Ms. Martinez.

1:24 p.m. Cross examination of Mr. Crollett by Ms. Colaizzi.

Witness excused.

Plaintiff's witness, Tim Stevens, called and sworn.

1:27 p.m. Direct examination of Mr. Stevens by Ms. Martinez.

Defendant's objection to Plaintiff's Exhibit 7 is SUSTAINED.

2:23 p.m. Court in recess.

2:41 p.m. Court in session.

Jury not present.

Discussion regarding Exhibit 7.

The Court's ruling that defendant's objection to Exhibit 7 continues to be SUSTAINED.

Jury present.

Court addresses the jury.

2:50 p.m. Cross examination of Mr. Stevens by Ms. Colaizzi.

Defendant's Exhibits VV and SSS are ADMITTED over Plaintiff's objection.

Defendant's Exhibit E (with email dated 2-24-17 redacted) is ADMITTED over Plaintiff's objection.

3:27 p.m. Redirect examination of Mr. Stevens by Ms. Martinez.

3:34 p.m. Recross examination of Mr. Stevens by Ms. Colaizzi.

Witness excused.

Plaintiff's witness, Diego Sedillo, called and sworn.

3:35 p.m. Direct examination of Mr. Diego by Ms. Martinez.

Counsel will prepare a list of stipulated exhibits and provide to the Court.

Jury excused and instructed to return at 8:30 a.m.

Discussion regarding schedule.

Counsel instructed to return at 8:30 a.m.

4:48 p.m. Court in recess.

Trial continued.

Total Time: 5:33